

23AHCV01996 23AHCV01996

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C08%2F28%2F2026

Source SHA-256: 15a1902a2eee0ca4c5cf76ab319d19eb48c763c94305566854d13a2b4a1945b4

Case Number: 23AHCV01996 Hearing Date: August 28, 2026 Dept: P

[TENTATIVE] ORDER DENYING PLAINTIFF'S MOTION TO SET ASIDE DISMISSAL

I. INTRODUCTION

On August

30, 2023, Plaintiff Salvador Carrillo ("Plaintiff") filed this action against Defendants Barry Nua ("Nua"), PGK Partners ("PGK"), Greystar Properties, and Does 1 through 10. On January 5, 2024, Plaintiff filed the First Amended Complaint ("FAC"), asserting causes of action for (1) battery; (2) negligent hiring, supervision, and retention; and (3) negligent premises liability. The action arises from an alleged September 2, 2021, incident at a construction project in Pasadena, where Plaintiff alleges Nua physically assaulted him while Plaintiff was using a portable toilet at the job site.

On April 20, 2026, the Court dismissed the action without prejudice. On July 24, 2026, Plaintiff filed the instant motion to set aside and vacate the dismissal pursuant to Code of Civil Procedure section 473(b). On August 17, 2026, Defendants Nua and PGK filed an opposition. No reply has been filed.

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (b) provides for either discretionary or mandatory relief from certain prior actions or proceedings in the trial court. (*Luriç v. Greenwaldç* (2003) 107 Cal.App.4th 1119, 1124.)çç

“Under the discretionary relief provision, on a showing of “mistake, inadvertence, surprise, or excusable neglect,” the court has discretion to allow relief from a “judgment, dismissal, order, or other proceeding taken against” a party or his or her attorney. Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of “mistake, inadvertence, surprise, or neglect,” the court shall vacate any “resulting default judgment or dismissal entered.” [Citation.] Applications seeking relief under the mandatory provision of section 473 must be ‘accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.’ The mandatory provision further adds that ‘whenever relief is granted based on an attorney’s affidavit of fault [the court shall] direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.’” (Ibid.; Code Civ. Proc., § 473, subd. (b).)

Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473, subd. (b).)

III. DISCUSSION

Plaintiff moves under Code of Civil

Procedure section 473(b) to vacate the dismissal entered on April 20, 2026. Plaintiff argues that the dismissal resulted from mistake, inadvertence, and excusable neglect arising from the severe medical decline and subsequent retirement of Plaintiff’s longtime counsel, Ralph R. Rios, Esq., and the resulting transition of approximately 189 active civil litigation files to successor counsel and staff. (Motion, pp. 3-5, 8-11.)

Defendants oppose the motion, arguing Plaintiff has not established grounds for either mandatory or discretionary relief under section 473(b). Defendants contend that Plaintiff’s explanation does not account for the notices and communications sent to Plaintiff’s counsel after Rios’s retirement, including notice of the continued April 20, 2026, OSC. (Opposition, pp. 2-5.)

The Court finds that Plaintiff has not established entitlement to relief under section 473(b). Although Plaintiff attributes the dismissal to extraordinary circumstances arising from Rios’s

medical decline, retirement, and the transition of approximately 189 active litigation files, the evidence does not adequately account for the events leading to the April 20, 2026, dismissal. Plaintiff's calendaring clerk, Miriam Espinosa, states that both the January 20 and April 20 OSC hearings had been maintained only in Rios's handwritten calendar and had not been entered into the firm's centralized calendaring system. (Espinosa Decl., ¶¶ 3-8.) However, Rios retired on December 30, 2025, and the April 20 OSC was not set until the January 20, 2026, hearing, after Rios's retirement. (Ramirez Decl., ¶¶ 4, 10; Opposition, pp. 4-5.)

Moreover, following the January 20 hearing, Defendants served a Notice of Ruling identifying the continued April 20 hearing date on Rios, Espinosa, and the firm's paralegal email address. Defendants also contacted Plaintiff's counsel's office by telephone on February 3, 2026, followed by emails on February 4 and February 9, 2026, but received no response. (Altomare Decl., ¶¶ 3-4.) Plaintiff does not explain why these communications were not reviewed or acted upon. Thus, even accepting that the January 20 hearing was missed because it had not been transferred from Rios's personal calendar, that explanation does not account for the subsequent failure to calendar or appear at the April 20 OSC after Plaintiff's counsel's office received notice of that hearing.

Furthermore, no declaration is submitted by Rios acknowledging or accepting responsibility for the alleged calendaring error. The attorney declaration submitted by Ramirez does not attest that Ramirez personally committed the mistake, inadvertence, or neglect that caused the dismissal. Rather, Ramirez states that he learned during the transition that Rios maintained certain hearing dates in a handwritten calendar and that those dates were not always transferred to the firm's centralized calendaring system. (Ramirez Decl., ¶¶ 8-11; Motion, pp. 16-17.) Thus, Plaintiff has not submitted an attorney affidavit accepting fault for the conduct that caused the dismissal.

Based on the foregoing, the Court
DENIES Plaintiffs motion for relief from dismissal without prejudice.

IV. CONCLUSION AND ORDER

The Court DENIES
the motion for relief from dismissal without prejudice.

Plaintiff

is to give notice.

Dated: August 28, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT